

ELIZABETH II



1970 CHAPTER iv

An Act to regulate the expenditure on capital account and on lending to other persons by the Greater London Council during the financial period from 1st April 1970 to 30th September 1971; and for other purposes.
[23rd July 1970]

WHEREAS the borrowing of money by the Greater London Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account or on lending to other persons is governed by the Local Government 1933 c. 51. Act 1933 and the London Government Act 1963 and by Acts 1963 c. 33. to be obtained by the Council for regulating such expenditure during any financial year (that is to say, a period of twelve months ending on 31st March) and the immediately following six months:

And whereas such financial year and the immediately following six months are in the London Government Act 1963 together referred to as a "financial period":

And whereas such expenditure as aforesaid is, in relation to the financial period ending on 30th September 1970, regulated by the Greater London Council (Money) Act 1969:

1969 c. xli.

And whereas it is expedient that the expenditure by the Council on capital account and on lending to other persons during the financial period from 1st April 1970 to 30th September 1971 (hereinafter referred to as "the financial period 1970-1971") should be regulated as by this Act provided:

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and on lending

to other persons during the financial period 1970-1971 in the execution of the powers and duties respectively delegated to those committees; and all those estimates have been considered by the finance and supplies committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council:

And whereas an estimate has been approved by the Inner London Education Authority of the amount which the said Authority may require in respect of expenditure on capital account during the financial period 1970-1971:

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1970-1971 are set out in Part I of the schedule to this Act:

And whereas the sums estimated to be so required as aforesaid for expenditure on lending to other persons by the Council during the financial period 1970-1971 are set out in Part II of the said schedule:

1963 c. 33. And whereas the further sums which the Treasury in pursuance of the London Government Act 1963 may authorise the Council to expend on capital account and on lending to other persons during the financial period 1970-1971 are set out in Part III of the said schedule:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the Greater London Council (Money) Act 1970.

Interpretation. 2.—(1) In and for the purposes of this Act—
 “the Act of 1963” means the London Government Act 1963;
 “the Council” means the Greater London Council;
 “the financial period 1970-1971” means the period from 1st April 1970 to 30th September 1971, both dates inclusive;
 “the financial year” means the period from 1st April 1970 to 31st March 1971, both dates inclusive;
 “the immediately following six months” means the period from 1st April 1971 to 30th September 1971, both dates inclusive;
 “the schedule” means the schedule to this Act.

(2) In the schedule references to any enactment shall be construed as references to that enactment as amended, extended or applied by any other enactment.

3.—(1) The purposes for which during the financial period 1970-1971 the Council may under the powers of the Act of 1963 expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expenditure on capital account during financial period 1970-1971.

(2) The sums which during the said financial period the Council may under the said powers expend on capital account shall, as regards the financial year and the immediately following six months, be sums which, except as otherwise provided by the Act of 1963, shall not exceed those specified in the third and fourth columns respectively of Part I of the schedule in relation to the said purposes.

4.—(1) The persons to whom the Council may, under the powers of the Act of 1963, lend money during the financial period 1970-1971, and who may under those powers borrow from the Council during that financial period shall be the persons mentioned in the first column of Part II of the schedule.

Loans to persons during financial period 1970-1971.

(2) The sums which during the said financial period may be so lent and borrowed shall, as regards the financial year and the immediately following six months, be sums which, except as otherwise provided by the Act of 1963, shall not exceed those specified in the second and third columns respectively of Part II of the schedule in relation to the said persons.

5. The sums which the Council may be authorised by the Treasury under the powers of the Act of 1963 to expend on capital account and on lending to other persons during the financial period 1970-1971, in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall, as regards the financial year and the immediately following six months, be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Sums which Treasury may authorise in case of insufficiency.

6. It shall not be lawful for the Council to exercise for the purposes mentioned in the foregoing provisions of this Act the powers of borrowing conferred by the Local Government Act 1933 otherwise than in compliance with the provisions for the time being in force of any order made under section 1 of the Borrowing (Control and Guarantees) Act 1946 and nothing in this Act shall be construed as authorising the borrowing of money by any of the persons mentioned in the first column of Part II of the schedule in contravention of any such order.

Saving.

SCHEDULE

PART I

ESTIMATED REQUIREMENTS FOR EXPENDITURE ON CAPITAL ACCOUNT

	Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Estimated requirement for year ending 31st March 1971 (3)	Estimated requirement for six months ending 30th September 1971 (4)
1906 c. 25.	1. Open Spaces Act 1906 and various Acts relating to parks, open spaces, gardens, public walks and pleasure grounds and Green Belt (London and Home Counties) Act 1938	Provision and lay-out of additional open spaces, contributions towards green belt schemes and other purposes	£ 1,122,000	£ 470,000
1938 c. xciii.				
1933 c. 51. 1963 c. 41.	2. Local Government Act 1933 and Offices, Shops and Railway Premises Act 1963	Provision, improvement and equipment of offices and staff restaurants Acquisition of sites for future development ...	1,000,000 1,500,000	1,000,000 767,000

1936 c. cviii. 1948 c. iv.	3. London and Middlesex (Improvements &c.) Act 1936. and London County Council (Improvements) Act 1948	Acquisition of property and execution of works in connection with the construction of the Cromwell Road extension and the Hammersmith flyover	1,000	1,000
1936 c. 49. 1963 c. 33. 1967 c. 69.	4. Public Health Act 1936, London Government Act 1963 and Civic Amenities Act 1967	Acquisition of property, provision of and altera- tions to refuse disposal plant and depots and provision of equipment and other purposes Acquisition of land, construction and improvement of sewage disposal works, sewers and pumping stations and other purposes	4,100,000 9,453,000	2,000,000 4,500,000
1938 c. lxxxi.	5. London County Council (Tunnel and Improve- ments) Act 1938	Acquisition of property and execution of works for the duplication of Blackwall Tunnel	106,000	—
	6. London County Council (General Powers) Acts 1939 and 1947	Execution of works in connection with the improve- ment of the south bank of the river Thames	1,110,000	600,000
	7. Education Acts 1944 to 1970	Acquisition of property, execution of works, provision and equipment of schools and other purposes	14,000,000	7,000,000
	8. National Health Service Acts 1946 to 1952 ...	Acquisition of property, provision of new head- quarters, provision of and alterations to ambulance stations and provision of equipment	960,000	300,000
1947 c. 41.	9. Fire Services Act 1947	Acquisition of property, erection of fire stations and other purposes	540,000	300,000
		Carried forward	33,892,000	16,938,000

SCHEDULE—*continued*

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Estimated requirement for year ending 31st March 1971 (3)	Estimated requirement for six months ending 30th September 1971 (4)
1949 c. 101. 1963 c. 33. 1964 c. 42.	Brought forward	£ 33,892,000	£ 16,938,000
10. Justices of the Peace Act 1949, London Govern- ment Act 1963 and Administration of Justice Act 1964	Acquisition of property and execution of works in connection with the provision of court accom- modation	410,000	400,000
1957 c. 56.	Acquisition of property, erection of dwellings and other purposes	57,543,000	28,967,000
1959 c. 25.	Acquisition of property and execution of works for construction and improvement of metropolitan roads	5,125,000	2,997,000
1960 c. xlviii.	Acquisition of property and execution of works	15,000	1,000
1961 c. xliii.	Acquisition of property and execution of works in connection with improvements at Finchley Road, Roehampton Lane and Kingston Road	81,000	8,000
1961 c. xlvi. 1930 c. 44. 1961 c. 48.	Acquisition of property and execution of works in connection with the improvement of metro- politan watercourses and the prevention of flooding	690,000	450,000

1962 c. xlix.	16. London County Council (Improvements) Act 1962	Acquisition of property and execution of works in connection with improvements at Bow Bridge and Woolwich Ferry	27,000	3,000
	17. London County Council (Improvements) Acts 1962 and 1963	Acquisition of property and execution of works in connection with the construction of the West Cross route and Western Avenue extension	1,101,000	240,000
1963 c. 33. 1966 c. 42.	18. Town and Country Planning Acts 1962 to 1968, London Government Act 1963 and Local Government Act 1966	Acquisition of property, compensation and execution of works	3,550,000	1,540,000
1963 c. xxxv.	19. London County Council (Improvements) Act 1963	Acquisition of property and execution of works in connection with improvements at the southern approach to Blackwall Tunnel and Tibbet's Corner	203,000	48,000
1964 c. xxviii.	20. London County Council (General Powers) Act 1964	Acquisition of property and execution of works in connection with the improvement of the southern approach to Wandsworth Bridge	161,000	4,000
1968 c. xxv	21. Greater London Council (Vauxhall Cross Improvement) Act 1968	Acquisition of property and execution of works in connection with improvements at Vauxhall Cross	180,000	198,000
1969 c. 35.	22. Transport (London) Act 1969 ...	Contributions to London Transport Executive towards special expenditure	2,000,000	1,000,000
	23. Any Act ...	To provide for possible further expenditure for purposes authorised by Parliament (whether before or during the financial period 1970-1971), for which it may be desirable that the Council should have spending power	100,000	50,000
			105,078,000	52,844,000
Carried forward ...				£157,922,000

SCHEDULE—continued

Brought forward £157,922,000

PART II

ESTIMATED REQUIREMENTS FOR EXPENDITURE ON LENDING

Persons to whom money may be lent		During year ending 31st March 1971	During six months ending 30th September 1971	
(1)		(2)	(3)	
		£	£	
24.	London borough councils	10,000,000	5,000,000	
25.	London Transport Executive	12,000,000	6,000,000	
26.	Governors or managers of educa- tional institutions, including special and approved schools; committees of school treatment centres, district nursing associa- tions and voluntary organisations assisting social services; gover- nors or committees of voluntary hostels, homes or other establish- ments; cultural bodies; and (for the provision of motor vehicles for official purposes) staff em- ployed by the Council or by the judicial services	200,000	100,000	
27.	Lee Valley Regional Park Authority for property acquisitions and development costs	250,000	125,000	
1952 c. 54.	28. Councils of county districts being receiving districts for the purposes of the Town Development Act 1952	100,000	50,000	
1957 c. xxxv.	29. Under the London County Council (General Powers) Act 1957, pur- chasers or lessees of land from the Council to assist them to develop such land	200,000	100,000	
1957 c. 56.	30. Sundry persons or bodies of persons under the Housing Act 1957 and Housing (Financial Provisions) Acts 1958 and 1959	65,000,000	32,500,000	
Total		87,750,000	43,875,000	131,625,000
Carried forward				£289,547,000

SCHEDULE—*continued*

Brought forward £289,547,000

PART III

EXPENDITURE ON CAPITAL ACCOUNT AND ON LENDING WHICH
MAY BE AUTHORISED BY THE TREASURY BEYOND AMOUNTS
SPECIFIED IN PARTS I AND II OF THIS SCHEDULE

Purposes (1)	During year ending 31st March 1971 (2)	During six months ending 30th September 1971 (3)	
	£	£	
31. General enlargement of spending and lending power to provide, under Treasury sanction, for possible further expenditure for purposes included, and possible further lending to persons men- tioned, in Parts I and II of this schedule respectively:—			
(i) for purposes of the Inner London Education Authority	2,000,000	1,000,000	
(ii) for other purposes	10,000,000	5,000,000	
	12,000,000	6,000,000	18,000,000
			<u>£307,547,000</u>

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Greater London Council (Money) Act 1970

CHAPTER IV

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SCHEDULE—

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